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Nandini Sundar
v
State of Chhattisgarh

Many of the chapters in this book demonstrate the impact and influence of judicial decision-making. Chief Justice M.C. Chagla's decision in the Narasu Appa Mali case during the Bombay monsoons in 1951 would result in religious 'personal laws' being immunized from the scrutiny of fundamental rights for decades. Chief Justice Y.V. Chandrachud's judgement in the Minerva Mills case in 1980 entrenched, once and for all, the position of the basic structure doctrine in India. And Justice S.R. Pandian's judgement in the Kartar Singh case in 1994 set the tone for continuing judicial deference to laws enacted in the name of national security. This chapter reveals the *limits* of the impact and influence of courts. A state-sanctioned armed civilian movement continued to thrive nearly a decade after being declared unconstitutional by the Supreme Court. A combination of political manoeuvring, adept litigation strategy and judicial delays have conspired to ensure that compliance with the court's judgement has been only in name.



Bastar, in the southern part of Chhattisgarh, was historically known for its dense forests and biodiversity. In recent decades, however, it has been at the epicentre of the Naxal movement in India. Since its emergence as a 'small